

21LBCV00639 21LBCV00639

County: los-angeles

Division: Civil Law and Motion

Department: S27

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Case Number: 21LBCV00639 Hearing Date: September 17, 2026 Dept: S27

Background Facts

Plaintiff, Palmcrest Grand Home

Assisted Living, LLC filed this action against Defendant, The Palms Real Estate, LLC for breach of lease and declaratory relief. The complaint was filed on 12/07/21.

On 7/25/22, Defendant filed a cross-complaint against Palmcrest House, LLC, which was the tenant to whom Defendant leased the property, and the tenant who in turn subleased the property to Plaintiff. The cross-complaint includes causes of action for declaratory relief, breach of contract, and indemnity.

On 10/03/22, Palmcrest House, LLC filed a cross-complaint against Plaintiff and Defendant, alleging claims for declaratory relief, indemnity, and contribution.

On 1/03/24, the Court approved the parties' stipulation and ordered a referee to "hear and determine all issues of fact and/or law" in this action.

Motion re:

Application of Five-Year Dismissal Rule

a. Recent

Hearings and Briefing

On 6/03/26, the Court held a status

conference regarding the status of the judicial reference. At the conclusion of the conference, the Court ordered the parties to submit a joint stipulation extending the five-year rule or submit briefing on the issue.

On 7/29 and 7/30/26, the parties submitted status reports re: the five-year statute. They did so because of the then-scheduled 7/31/26 OSC re: stipulation of five-year statutory time.

Plaintiff submitted a report wherein it took the position that “trial” commenced on 7/03/25 when the referee issued a Phase One Interim Ruling. Alternatively, it indicated that, if the issue needs to be determined as a disputed issue, the issue should be submitted to the referee for ruling.

Defendant submitted a report wherein it indicated it had been in communication with Plaintiff to execute a stipulation re: the five-year dismissal statute, but needed more time to evaluate its options. It did not meaningfully brief any issue, did not provide citations to authorities, and just generally indicated it was evaluating various issues before substantively responding.

On 7/31/26, the Court set the matter for hearing on noticed motion and scheduled the hearing on 9/17/26. The Court ordered a briefing schedule per statute.

On 8/25/26, Plaintiff filed an opening brief re: the issue. Plaintiff’s opening brief re-states its position in the status conference report – that the five-year statute is satisfied by the commencement of trial, and that, to the extent satisfaction of the statute is disputed, the issue is one for the referee.

Any responsive brief was due nine court days prior to the hearing, which fell on 9/03/26. Defendant filed a grossly untimely brief on 9/09/26, which rendered review difficult to timely prepare for the hearing. The Court has read and considered the untimely responsive brief.

b.
Referee

Determination

The threshold issue on this motion is whether the Court or the Referee should hear this motion. In its original status report, Defendant argued, without citation to authority, that the referee did not have jurisdiction to hear a major legal question that will determine liability. In its moving papers, Plaintiff submits authority conceding that this is the case if the trial court acts on its own motion, but it is NOT the case in the event the parties, as they did here, stipulate to the reference. See *O'Donoghue v. Superior Court* (2013) 219 Cal.App.4th 245, 255.

In the response brief, Defendant argues Plaintiff is confusing a Referee with a temporary judge. Defendant again cites no authority for the position. The parties clearly agreed to submit all issues of fact and law to the Referee. The Court finds the Referee must make this determination, and orders the parties to submit the issue to the Referee for determination.

c. Future Hearings

The Court has a status conference re: judicial reference scheduled on 2/10/27. The status conference remains scheduled. The parties must submit the issue of the five-year rule for determination prior to the status conference.

d. Notice

Plaintiff is ordered to give notice.